

Court No. - 37

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Put up tomorrow as fresh.

Order Date :- 11.11.2013

SB

Court No. - 37

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Petitioner's case is that his electricity connection was permanently disconnected in the year 2005. However, a demand notice was issued on 30.4.2013 and now recovery has been initiated.

Shri Pranjal Mehrotra, learned counsel appearing for the respondents is allowed ten days time to file counter affidavit or obtain instructions.

Put up as fresh on 26.11.2013.

In the meantime, no coercive steps shall be taken against the petitioner in pursuance of the demand notice dated 30.4.2013.

Order Date :- 13.11.2013

VS

Court No. - 37

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Ashok Bhushan,J.

Hon'ble Mahendra Dayal,J.

Sri Pranjal Mehrotra, learned counsel appearing for respondent nos. 1 and 2 prays for and is allowed two weeks' time to file counter affidavit.

Petitioner's case in the writ petition is that the petitioner's electricity was disconnected in November, 2005 and thereafter, after more than 7 years, recovery citation has been issued by the respondents' authorities for recovery of amount of Rs. 74,958/-. He further submits that the amount cannot be recovered after laps of such a long period by virtue of para 6.15 U.P. Electricity Supply Code, 2005.

List on 16th December, 2013.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of recovery certificate dated 30.5.2012.

Order Date :- 26.11.2013

Manoj

Court No. - 37

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Respondents are allowed three weeks' further time to file counter affidavit.

List thereafter.

Interim order granted earlier to continue till then.

Order Date :- 16.12.2013

SB

Court No. - 37

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Vineet Saran,J.

Hon'ble Suneet Kumar,J.

Respondents are allowed a months' further and no more time to file counter affidavit. Petitioner may file rejoinder affidavit within two weeks thereafter.

Interim order to continue till the next date of listing.

Order Date :- 10.1.2014

IB

(Suneet Kumar,J) (Vineet Saran,J)

Court No. - 39

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

On the illness slip of Sri Pranjal Mehrotra, learned counsel for the respondent, the case is passed over for the day.

However, in the interest of justice, interim order is extended till the next date of listing.

Order Date :- 9.9.2014

Anil

Court No. - 39

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And
Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Tarun Agarwala,J.

Hon'ble Shri Narayan Shukla,J.

List in the next cause list.

Interim order is extended till the next date of listing.

Order Date :- 17.10.2014

Sh

(Shri Narayan Shukla, J.)(Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Tarun Agarwala,J.

Hon'ble Shri Narayan Shukla,J.

List has been revised. No one appears to press the writ petition.

Dismissed for want of prosecution.

Order Date :- 31.10.2014

Bhaskar

(Shri Narayan Shukla, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

Heard the learned counsel for the parties.

Cause shown is sufficient.

The restoration application is allowed.

The delay condonation application is allowed. The delay in filing the restoration application is condoned.

The restoration application is allowed.

The order dated 31.10.2014 is recalled and the writ petition is restored to its original number.

List the case before appropriate Bench.

This case shall not be treated as tied up or part heard to this Bench.

Order Date :- 25.5.2015

MAA/-

(Amar Singh Chauhan,J.)

(Tarun Agarwala,J.)

Court No. - 21

Case :- WRIT - C No. - 61548 of 2013

Petitioner :- Rashid Husain

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Siddharth Singhal

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

None appears on behalf of the petitioner to press the writ petition even in the revised call.

Learned Standing Counsel for the State is present.

The writ petition is dismissed for want of prosecution.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.3.2023

Rama Kant